

2. Any sale at an auction, with respect to which any such agreement or transaction as aforesaid has been made or effected, and which has been the subject of a prosecution and conviction, may, as against a purchaser who has been a party to such agreement or transaction, be treated by the vendor as a sale induced by fraud:

Right of vendors to treat certain sales as fraudulent.

Provided that a notice or intimation by the vendor to the auctioneer that he intends to exercise such power in relation to any sale at the auction shall not affect the obligation of the auctioneer to deliver the goods to the purchaser.

3. The particulars which under section seven of the Auctioneers Act, 1845, are required to be affixed or suspended in some conspicuous part of the room or place where the auction is held shall include a copy of this Act, and that section shall have effect accordingly.

Copy of Act to be exhibited at sale. 8 & 9 Vict. c. 15.

4.—(1) This Act may be cited as the Auctions (Bidding Agreements) Act, 1927, and shall come into operation on the first day of January, nineteen hundred and twenty-eight.

Short title, commencement and extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 13.

An Act to amend the Diseases of Animals Acts, 1894 to 1925. [29th July 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Sections five, six, eight, nine and eleven of the Diseases of Animals Act, 1894 (hereinafter referred to as "the principal Act") (which relate to places and areas infected with cattle plague, pleuro-pneumonia, and foot-and-mouth disease, and to movement into, within, or out of places and areas so infected), and section twelve of that Act (which contains provisions as to infected circles) shall cease to have effect, and section ten of

Extension of s. 10 of 57 & 58 Vict. c. 57 to places and areas infected with cattle plague, pleuro-

pneumonia,
and foot-
and-mouth
disease.

the principal Act (which contains general provisions as to infected places and areas) shall apply with respect to places and areas infected with cattle plague, pleuro-pneumonia, and foot-and-mouth disease as it applies with respect to places and areas infected with other diseases.

(2) Subsection (5) of section ten of the principal Act (which provides that certain orders of the Minister of Agriculture and Fisheries (hereinafter referred to as "the Minister") or of a local authority shall be conclusive evidence of matters whereon the orders proceed) shall apply to any notice served in pursuance of directions of the Minister or of a local authority by virtue of an order made under that section as it applies to orders of the Minister or of a local authority.

(3) This section shall come into operation on such day not more than twelve months after the passing of this Act as may be fixed by order of His Majesty in Council.

Power to
order
slaughter of
animals in
contact with
animals
suffering
from cattle
plague to
be discre-
tionary.

2. So much of subsection (1) of section seven of the principal Act as requires the Minister to cause to be slaughtered any animal being or having been in the same shed, stable, herd or flock, or in contact with an animal affected with cattle plague, shall cease to have effect, but the Minister may under that section cause any such animal to be slaughtered if he is satisfied that the slaughter of the animal is necessary for preventing the spreading of cattle plague.

Power of
Minister to
order im-
mediate
slaughter of
imported
animals
liable to be
slaughtered.

3.—(1) If any animal in an imported animals' wharf, or in an approved landing-place, is found to be liable to be slaughtered under the principal Act by order of the Minister or of a local authority, the Minister may cause the animal to be slaughtered forthwith.

(2) In this section the expressions "imported animals' wharf" and "approved landing-place" have the same meanings respectively as the expressions "foreign animals' wharf" and "approved landing-place" in section five of the Importation of Animals Act, 1922 (Session 2).

13 Geo. 5.
c. 5.
(Sess. 2).

Fees on
detention
and testing
of imported
animals.

4. The limitation contained in section six of the Importation of Animals Act, 1922 (Session 2), which restricts the fees which may be charged in respect of

the landing of imported animals in Great Britain to the sum of sixpence as respects any one animal, shall not apply in the case of any imported animal which by virtue of an order made by the Minister under the principal Act is required to be detained and tested for disease under the supervision of a veterinary inspector appointed by the Minister or by a local authority under the principal Act, and accordingly the fees to be charged under that section in any such case shall be such as may, in the opinion of the Treasury, be sufficient to meet the expenses of the examination including any such detention and testing as aforesaid.

5. For section fifty-one of the principal Act there shall be substituted the following section, that is to say—

Increase of
maximum
penalties.

“ If any person is guilty of an offence against
“ this Act, he shall for every such offence be
“ liable—

“ (i) to a fine not exceeding fifty pounds ;
“ or

“ (ii) if the offence is committed with respect
“ to more than ten animals, to a fine not
“ exceeding five pounds for each animal ; or

“ (iii) where the offence is committed in
“ relation to carcasses, fodder, litter, dung or
“ other thing (exclusive of animals), to a fine
“ not exceeding ten pounds in respect of every
“ half ton in weight thereof after one half ton,
“ in addition to the first fine of not exceeding
“ fifty pounds.”

6.—(1) This Act may be cited as the Diseases of Animals Act, 1927, and this Act and the Diseases of Animals Acts, 1894 to 1925, may be cited together as the Diseases of Animals Acts, 1894 to 1927.

Short title,
citation,
extent, con-
struction,
and repeal.

(2) This Act shall not extend to Northern Ireland.

(3) Except where the context otherwise requires, references in this Act to the principal Act shall be construed as references to that Act as amended by any subsequent enactment including this Act, and, save as respects Northern Ireland, this Act shall be construed as one with the principal Act.

(4) The provisions of the principal Act specified in Part I. of the Schedule to this Act are hereby repealed as from the commencement of this Act, and the provisions of that Act specified in Part II. of the said Schedule shall be hereby repealed as from the date upon which section one of this Act comes into operation.

Section 6.

SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

PART I.

Provisions repealed from passing of Act.

Section 51.

PART II.

Provisions repealed upon coming into operation of section one of Act.

Section 5.

Section 6.

Section 8.

Section 9.

In section 10, in subsection (1) thereof, the words "other than cattle plague, pleuro-pneumonia, or foot and mouth disease": in subsection (2) thereof the words "as well as a place or area declared infected with cattle plague, pleuro-pneumonia, or foot and mouth disease": in subsection (3) thereof the words "but without prejudice to the powers of the Board as regards cattle plague."

Section 11.

Section 12.

The First Schedule.
